

FEDERAL MARITIME COMMISSION

Washington, D.C.

Docket No. 21-02

YSN IMPORTS INC. d/b/a FLAME KING, Complainant

v.

FEIGE “PEGGY” OBERLANDER, U SHIPPERS GROUP INC., U SHIPPERS GROUP
MANAGEMENT CO., INC., Respondents.

**RESPONDENTS’ MOTION TO EXTEND TIME TO RESPOND TO DISCOVERY
REQUESTS**

Respondents Feige “Peggy” Oberlander, U Shippers Group Inc. (the “Association”), U Shippers Group Management Co., Inc. (“Management”) (all three Respondents collectively “Respondents”) hereby move to extend the time to respond to Complainant’s discovery requests.

On September 3, 2021, Complainants served discovery request on Respondents. Although Respondents have endeavored to produce responsive documents they have been hindered in doing so by the fact that Ms. Oberlander is nine months pregnant, and is ultra-orthodox Jewish and does not work, use her phone or computer on Jewish holidays, which have been frequent in the month of September (September 6-8, September 15-16, and September 20-29).¹ There have therefore been very few work-days in the month of September for defendants. While the Complainant has agreed to extend the time for discovery responses by ten days, due to the circumstances outlined above, more time is needed in order to produce responsive documents.² Respondents therefore

¹ During the intermediate days of the Sukkot/Simchat Torah holiday (9/23-27), use of a phone and computer is technically allowed, but ultra-Orthodox Jews do not work on those days for religious reasons).

² Although the parties have consulted in an effort to resolve the issue, the Complainant has not been willing to agree to an extension beyond ten days.

request an additional three weeks to respond to Complainant's discovery requests to November 1, 2021.

For the foregoing reasons, Respondents request an additional three weeks to respond to Complainant's discovery requests.

Dated: October 4, 2021
New York, New York

By: /s/ Efrem Schwalb
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CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the execution date which appears below, the undersigned served the attached document on counsel for Complainant at the following address(es):

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Executed: October 4, 2021

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